

## 24STCV12736 24STCV12736

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DEMURRER

WITH MOTION TO STRIKE

The Court tenders

the following tentative decision in the matter Kim Nguyen v. Natay Solomon, et al., Los Angeles County Superior Court case number 24STCV12736, set for hearing on August 31, 2026. Maxim Healthcare Services, Inc. and Adam Lavoy (collectively, Cross-Defendants) demur to the third cause of action contained within Natay Solomon's (Cross-Complainant) second amended cross complaint (SACC). Cross-Defendants also move to strike Cross-Complainant's requests for attorney's fees and declaratory relief. Cross-Defendants' demurrer is sustained. Their motion to strike is granted in part. Cross-Complainant is not granted leave to amend.

### A. Legal Standard

A demurrer is

sustained where "[t]he pleading does not state facts sufficient to constitute a cause of action." (Code Civ. Proc., § 430.10, subd. (e).) "A demurrer tests the legal sufficiency of the factual allegations in a complaint." (Yalung v. State (2023) 98 Cal.App.5th 71, 80.) In reviewing a complaint's legal sufficiency, a court will treat the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of law. (Esparza v. Kaweah Delta Dist. Hospital (2016) 3 Cal.App.5th 547, 552.) It is well settled that a "demurrer lies only for defects appearing on the face of the complaint[.]" (Stevens v. Superior Court (1999) 75 Cal.App.4th 594, 601.) "We not only treat the demurrer as admitting all material facts properly pleaded, but also give the complaint a reasonable

interpretation, reading it as a whole and its parts in their context.” (Quelimane Co. v. Stewart Title Guaranty Co. (1998) 19 Cal.4th 26, 38.) For purposes of ruling on a demurrer, the complaint must be construed liberally by drawing reasonable inferences from the facts pleaded. (Wilner v. Sunset Life Ins. Co. (2000) 78 Cal.App.4th 952, 958.)

When ruling

on a demurrer, a court may only consider the complaint's allegations or matters which may be judicially noticed. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.) The Court may not consider any other extrinsic evidence or judge the credibility of the allegations pleaded or the difficulty a plaintiff may have in proving his allegations. (Ion Equipment Corporation v. Nelson (1980) 110 Cal.App.3d 868, 881.) A demurrer is properly sustained only when the complaint, liberally construed, fails to state facts sufficient to constitute any cause of action. (Kramer v. Intuit Inc. (2004) 121 Cal.App.4th 574, 578.)

The Court

may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc., § 436, subd. (a).) The Court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the Court. (Id., § 436, subd. (b).)

The grounds for a motion to strike are that the pleading has irrelevant, false or improper matter, or has not been drawn or filed in conformity with laws. (Id., § 436.) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Id., § 437.)

When a

demurrer is sustained or a motion to strike is granted, the Court determines whether there is a reasonable possibility that the defect can be cured by amendment. (Blank, supra, 39 Cal.3d at p. 318.) When a plaintiff “has pleaded the general set of facts upon which his cause of action is based,” the court should give the plaintiff an opportunity to amend his complaint, since plaintiff should not “be deprived of his right to maintain his action on the ground that his pleadings were defective for lack of particulars.” (Reed v. Norman (1957) 152 Cal.App.2d 892, 900.)

B. Discussion

Cross-Complainant seeks damages from Cross-Defendants based on their failure to prevent him from injuring Kim Nguyen (Plaintiff). (SACC ¶¶ 22–31.) Cross-Defendants demur to Cross-Complainant's third cause of action for declaratory relief. Separately, they move to strike his requests for declaratory relief and attorney's fees from his prayer for relief. The Court will address each issue in turn.

Cross-Defendants' demurrer is sustained with respect to Cross-Complainant's declaratory relief claim.

Cross-Defendants demur to Cross-Complainant's third cause of action for declaratory relief on the grounds that he has not pled sufficient facts. (Code Civ. Proc., § 430.10, subd. (e).) "Any person . . . who desires a declaration of his or her rights or duties with respect to another . . . may, in cases of actual controversy relating to the legal rights and duties of the respective parties, bring an original action . . . for a declaration of his or her rights and duties." (Code Civ. Proc., § 1060.) Importantly, "[t]he court may refuse to exercise the power granted by this chapter in any case where its declaration or determination is not necessary or proper at the time under all the circumstances." (Id., § 1061.) In particular, declaratory relief "should not be used for the purpose of anticipating and determining an issue which can be determined in the main action. The object of the statute is to afford a new form of relief where needed and not to furnish a litigant with a second cause of action for the determination of identical issues." (General of America Ins. Co. v. Lilly (1968) 258 Cal.App.2d 465, 470 (General of America).)

Here, Cross-Complainant seeks determination of the same issues which will be determined in the main action in contravention of General of America. Specifically, he seeks a declaration that "as between Cross-Complainant and Cross-Defendants, Cross-Complainant does not owe any duty or, in the alternative, did not breach any duty owed to Plaintiff that was a legal cause of Plaintiff's alleged injuries and damages, and that Cross-Complainant is not liable to Plaintiff on the claims asserted in this action." (SACC ¶ 54.) Kim Nguyen (Plaintiff), meanwhile, alleges that Cross-Complainant is liable for her physical and emotional injury. (Second Amended Complaint (SAC) ¶ 53.) Thus, Cross-Complainant's liability will be determined in the main action and his claim for declaratory relief is subject to demurrer as a declaration is not "necessary or proper." (Code Civ. Proc., § 1061.) Accordingly, Cross-Defendants' demurrer is sustained.

Cross-Complainant's request for declaratory relief is properly stricken.

Cross-Defendants move to strike

Cross-Complainant's request for declaratory relief from his prayer for relief on the grounds that it constitutes an irrelevant or improper matter. (Code Civ. Proc., § 436, subd. (a).) Indeed, as discussed ante, Cross-Complainant's cause of action for declaratory relief is subject to demurrer. Thus, his request for declaratory relief is irrelevant and improper. Accordingly, Cross-Defendants' motion to strike is granted with respect to the third paragraph of Cross-Complainant's prayer for relief.

Cross-Complainant's request for attorney's fees is not stricken.

Cross-Defendants move to strike

Cross-Complainant's request for attorney's fees as an irrelevant and improper matter as well. (SACC, Prayer ¶ 2.) The Court previously granted Cross-Defendants' motion to strike on the same basis with respect to the first amended cross-complaint. A plaintiff must demonstrate that a contract provision or a statute allows for an award of attorney's fees for such a request to be maintained. (People ex rel. Dept. of Corporations v. Speedee Oil Change Systems, Inc. (2007) 147 Cal.App.4th 424, 429.) But the tort of another doctrine provides for a different basis: "A person who through the tort of another has been required to act in the protection of his interests by bringing or defending an action against a third person is entitled to recover compensation for the reasonably necessary loss of time, attorney's fees, and other expenditures thereby suffered or incurred." (Prentice v. North American Title Guaranty Corp. (1963) 59 Cal.2d 618, 620 (Prentice).)

Here, Cross-Complainant alleges that he has been required to retain counsel and defend against Plaintiff's claims in this action as a direct result of Cross-Defendants' tortious acts and omissions. (SACC ¶ 32.) He further alleges that he has and will continue incurring attorney's fees and related litigation expenses in defending against Plaintiff's claims. (Id. ¶ 33.) Finally, he alleges that the attorney's fees and related expenses are sought as tort damages under Prentice.

Cross-Defendants

argue that the tort of another doctrine is inapplicable in the present case under *Gorman v. Tassajara Development Corp.* (2009) 178 Cal.App.4th 44. In that case, the Court of Appeal held that the doctrine “does not allow a party to recover the fees and costs involved in litigating directly with a negligent defendant.” (Id. at p. 80.) However, Cross-Complainant does not seek fees and costs related to his litigation with Cross-Defendants. Rather, he only seeks recovery for expenses in “defending against Plaintiff’s claims.” (SACC ¶ 33.) And Plaintiff’s only claim against Cross-Complainant is battery, a cause of action which Cross-Complainant does not assert against Cross-Defendants. Thus, the tort of another doctrine applies and Cross-Complainant’s request for attorney’s fees is properly supported. Accordingly, Cross-Defendants’ motion to strike is denied with respect to his attorney’s fee request.

Cross-Complainant is denied leave to amend.

With respect to Cross-Complainant’s cause of action and request for declaratory relief, it is apparent that he is unable to state such a claim. No amount of amendment would change the circumstances of this case, where Cross-Complainant’s liability for Plaintiff’s injury is already being determined in the underlying action. Accordingly, leave to amend is denied.

#### C. Conclusion

The Court sustains Cross-Defendants’ demurrer and grants their motion to strike with respect to paragraph 3 of the prayer for relief only. Leave to amend is denied.

#### MOTION FOR SUMMARY JUDGMENT

The Court tenders the following tentative decision in the matter *Kim Nguyen v. Natay Solomon, et al.*, Los Angeles County Superior Court case number 24STCV12736, set for hearing on August 31, 2026. Maxim Healthcare Services, Inc. (Maxim) and Adam Lavoy (collectively, Defendants) move for summary judgment in their favor and against Kim Nguyen (Plaintiff). Plaintiff opposes the motion. The Court denies summary judgment.

A.

Factual and

Procedural Summary

Many of the

following facts are subject to dispute. Natay Solomon is a developmentally disabled and largely nonverbal adult who suffers from severe autism spectrum disorder. (Plaintiff's Response to Defendants' Separate Statement (PSS) ¶¶ 1–2; Z. Solomon Dep.) Natay has received services from the Lanterman Regional Center (LRC) since age 3. (PSS ¶ 4; Y. Solomon Dep.) When Natay became upset in the past, he had outbursts involving throwing small objects. (PSS ¶ 5; Z. Solomon Dep.) But according to Natay's father, he never had an outburst that injured or hurt anyone. (PSS ¶ 6; Z. Solomon Dep.)

In 2019, LRC

approved Maxim to provide services to Natay. (PSS ¶ 18; Ex. F.) Natay's caregivers aimed to improve his behaviors at home and in community settings. (PSS ¶ 21; Ex. F.) In 2023, LRC arranged for Maxim to provide a caregiver to Natay. (PSS ¶ 24; Y. Solomon Dep.) Lavoy had worked for four months as a full-time caregiver for Maxim at the time. (PSS ¶¶ 25, 27; Lavoy Dep.) Lavoy took Natay for walks throughout the local community. (PSS ¶¶ 33, 35; Y. Solomon Dep.; Lavoy Dep.)

Lavoy

started his shift at noon on September 4, 2023. (PSS ¶ 37; Z. Solomon Decl.) Natay's father told Lavoy that Natay was agitated because he did not have his regularly scheduled school that day. (PSS ¶¶ 38–39; Z. Solomon Dep.) Lavoy and Natay sat for a bit before walking to McDonald's, a regular activity for them. (PSS ¶¶ 42–45; Lavoy Dep.) Natay became agitated at McDonald's and hit a woman in a neighboring booth with his arm, but she was not injured. (PSS ¶¶ 48–51; Lavoy Dep.) Later, the two went for another walk. (PSS ¶ 56; Z. Solomon Dep.) They were walking along the street with Natay's home when he went up behind Lavoy and pushed him into the street before running away, forcing Lavoy to chase him. (PSS ¶¶ 58–59; Lavoy Dep.) By the time Lavoy caught up with Natay, Plaintiff was already on the ground. (PSS ¶ 60; Lavoy Dep.) Plaintiff had been walking around her neighborhood alone. (PSS ¶¶ 61–62; Nguyen Dep.) Plaintiff has no memory of the incident. (PSS ¶ 63; Nguyen Dep.) Lavoy witnessed Natay kicking Plaintiff in the chest as she lay on the ground. (PSS ¶ 64; Lavoy Dep.)

Plaintiff

filed the present action on May 21, 2024. The operative second amended complaint (SAC) was filed on December 31, 2025. Therein, Plaintiff asserts a cause of action for negligence against Defendants and an additional cause of action for negligent hiring against Maxim. Defendants filed the present motion for summary judgment on June 8, 2026. Plaintiff filed her opposition on August 11. Defendants filed a reply on August 20.

B.

Legal

Standard

The function of a motion for summary judgment or adjudication is to allow a determination as to whether an opposing party can show evidentiary support for a claim or defense and if not to enable an order of summary dismissal without the need for trial. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843.) Code of Civil Procedure Section 437c, subdivision (c) “requires the trial judge to grant summary judgment if all the evidence submitted, and ‘all inferences reasonably deducible from the evidence’ and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.” (*Adler v. Manor Healthcare Corp.* (1992) 7 Cal.App.4th 1110, 1119.)

As to each claim as framed by the complaint, a moving defendant “has met that party’s burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action.” (Code Civ. Proc., § 437c, subd. (p)(2).) Courts “liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party.” (*Dore v. Arnold Worldwide, Inc.* (2006) 39 Cal.4th 384, 389 (Dore).) Once the defendant has met that burden, the burden shifts to the opposing plaintiff “to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Code Civ. Proc., § 437c, subd. (p)(2).) To establish a triable issue of material fact, the party opposing the motion must produce substantial responsive evidence. (*Sangster v. Paetkau* (1998) 68 Cal.App.4th 151, 166.)

C. Discussion

Defendants move for summary judgment on the basis that Plaintiff cannot prove

her causes of action for negligence or negligent hiring, the sole causes of action alleged against them. With respect to negligence, they argue that Plaintiff was not a foreseeable victim, that they had no ability to prevent the incident, that their only duty was to protect Natay, that no analysis is required under Rowland, and that even under a Rowland analysis no duty exists. With respect to negligent hiring, Defendants maintain that Plaintiff has failed to establish the required elements. Because Defendants have not sought summary adjudication, the Court need not address the parties' arguments regarding Plaintiff's claim for negligent hiring and supervision, as the Court finds that Defendants are not entitled to summary judgment on Plaintiff's negligence claim.

Defendants have met their burden of demonstrating that they are entitled to judgment as a matter of law with respect to Plaintiff's negligence claim, but Plaintiff has raised triable issues of material fact.

Defendants argue that Plaintiff cannot prevail on her cause of action for negligence as a matter of law. "A plaintiff in a negligence suit must demonstrate a legal duty to use due care, a breach of such legal duty, and the breach as the proximate or legal cause of the resulting injury." (Vasilenko v. Grace Family Church (2017) 3 Cal.5th 1077, 1083 [internal quotations omitted].) Specifically, Defendants argue that they did not owe Plaintiff a legal duty to protect her and prevent Natay's attack.

First, Defendants argue that Plaintiff was not an identifiable, foreseeable victim. "A plaintiff can prevail on a negligence claim only if he establishes, as a 'threshold matter,' that the particular defendant he is suing owes him a 'legal duty of care.'" (Shalghoun v. North Los Angeles County Regional Center, Inc. (2024) 99 Cal.App.5th 929, 943 (Shalghoun) [quoting Brown v. USA Taekwondo (2021) 11 Cal.5th 204, 213].) Whether a defendant owes a plaintiff a legal duty is a question of public policy. (Id. at p. 943.) Thus, when courts determine whether a duty is owed they must (1) identify whether the defendant owes the plaintiff a legal duty of care under traditional tort principles and (2) decide whether the public policy considerations set forth in Rowland v. Christian (1968) 69 Cal.2d 108, favor limiting that duty. (Shalghoun, supra, at p. 944.)

Everyone "has a legal duty to act reasonably and with due care under the circumstances with respect to their own actions." (Shalghoun, supra,

99 Cal.App.5th at p. 944; Civ. Code, § 1714.) Additionally, one generally “has no legal duty to protect others from a third party’s conduct.” (Shalghoun, *supra*, at p. 944.) However, a legal duty is still owed if “(1) the defendant has a ‘special relationship’ with a third party who injures the plaintiff, and (2) that special relationship entails a duty to control the third party’s conduct for the benefit of the plaintiff or the class of persons to which the plaintiff belongs.” (Id. at p. 945.) The plaintiff must be able to show that the defendant had an ability to control the third party in a way that would meaningfully reduce the risk of harm that occurred. (Ibid.) This ability to control either arises out of the nature of the special relationship itself or through control over the environment in which the plaintiff is injured. (Id. at pp. 945–946.)

It is undisputed that Defendants held a special relationship with Natay as his caregiver. The relevant questions are thus (1) whether Defendants’ special relationship with Natay entailed a duty to control his conduct and (2) whether such control was for the benefit of the class of people to which Plaintiff belongs. Neither party directly addresses the first question. The Court finds that as Natay’s caregiver Defendants did have a duty to control his conduct. With respect to the second question, Defendants argue that *Rice v. Center Point, Inc.* (2007) 154 Cal.App.4th 949 (*Rice*), defeats Plaintiff’s claim. There, the Court of Appeal held that “the public policy of encouraging rehabilitation of criminal offenders, the lack of foreseeability of injury to an identifiable person, and the fact that the risk of injury is shared by all members of the general public militate against the imposition of a duty to exercise ordinary care.” (Id. at p. 958.) It explained that a duty is only imposed “where the injury is foreseeable and the intended victim is identifiable,” though they need not be specifically named. (Id. at p. 955.) The fact that the plaintiffs were attacked at a park near the rehabilitation center did not render them identifiable. (Ibid.) Here, Natay attacked Plaintiff, a woman with whom he had no prior relationship. At the time, she constituted a member of the public. Thus, similarly to *Rice*, Plaintiff was not a readily identifiable victim, meaning that Defendants did not owe her a duty of protection from Natay.

Plaintiff raises triable issues of material fact in response. As discussed in the factual summary, earlier that day Natay had hit a bystander at McDonald’s multiple times with his arm. (PSS ¶¶ 48–51; Lavoy Dep.) That individual was also a member of the public. (Ibid.) Plaintiff’s theory is that members of the public became identifiable victims in the wake of that

incident, as Natay had demonstrated a propensity for physical harm to random bystanders that day. The Court agrees that this formulation constitutes a triable issue of material fact. It is proper for a jury to determine whether this prior incident lent sufficient foreseeability to the harm eventually inflicted upon Plaintiff to impose a duty on Defendants.

Next, Defendants argue that they had no ability to control Natay, a showing required under *Shalghoun* for a finding of duty. But their own evidence belies the opposite. They assert that Lavoy was hired as a companion to Natay and to redirect him when necessary. Even if Defendants did not possess the ability to physically restrain or imprison Natay, they retained the ability to exercise some control over his daily plan. As Plaintiff identifies, Defendants could have encouraged Natay to not go on another walk that day after the earlier encounter at McDonald's. Avoiding further interaction with members of the public would have meaningfully reduced the risk of harm, as required under *Shalghoun*. And Plaintiff presents evidence that Natay had previously engaged in behavior which caused or threatened to cause physical injury. (PSS ¶¶ 104, 105, 112, 113.) Thus, there is a further issue of triable fact as to whether Defendants lacked meaningful control over Natay. Defendants do not challenge Plaintiff's ability to establish the remaining elements of her negligence cause of action.

Finally, Defendants argue that the attack on Plaintiff was not foreseeable because (1) while Natay had been physically aggressive to the point of injury it was directed to people known to him and (2) where he was physically aggressive toward people not known to him it never resulted in actual injury. These constitute further triable issues of material fact: it should be up to the jury to determine whether this made it foreseeable that he might injure someone not previously known to him. Accordingly, Defendants' motion for summary judgment is denied.

Conclusion:

Defendant's motion for summary judgment is denied.